



Stephen R. Smith
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Via EDIS

July 21, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St., SW, Room 112
Washington, DC 20436

**Re: *Certain Semiconductor Devices, Products Containing Same, and Components Thereof,*
Inv. No. 337-TA-1500**

Dear Secretary Barton:

Attached for filing on behalf of Respondents Tower Semiconductor Ltd.; Tower Partners Semiconductor, Ltd.; Tower Semiconductor Italy S.r.l.; Tower US Holdings, Inc.; Tower Semiconductor San Antonio, Inc.; Tower Semiconductor NPB Holdings, Inc.; Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC in the above-referenced proceeding, please find Agreements to be Bound by the Amended Protective Order (Order No. 7, June 29, 2026) for the following individuals:

- Stephen R. Smith
- Eamonn Gardner
- Phillip Morton
- Matthew Brigham
- Samuel Whitt
- Patrick Lauppe
- Matthew Ritter
- David Yun

Please contact me if you have any questions.

Respectfully Submitted,

/s/ Stephen R. Smith

Stephen R. Smith

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Stephen R. Smith [print or type full name], state: My

business address is 1299 Pennsylvania Ave. NW, Suite 700, Washington, DC 20004 ;

My present employers are Cooley LLP ;

My present occupations or job descriptions are Counsel for Respondents ;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 21, 2026.

Stephen R. Smith

[Printed Name]

/s/ Stephen R. Smith

[Signature]

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Eamonn Gardner [print or type full name], state: My
business address is 1144 15th St., Ste. 2300, Denver, CO 80202;

My present employers are Cooley LLP;

My present occupations or job descriptions are Counsel for Respondents;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all **HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION** provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 21, 2026.

Eamonn Gardner

[Printed Name]

/s/ Eamonn Gardner

[Signature]

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Phillip Morton [print or type full name], state: My

business address is 1299 Pennsylvania Ave. NW, Suite 700, Washington, DC 20004 ;

My present employers are Cooley LLP ;

My present occupations or job descriptions are Counsel for Respondents ;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

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Executed on July 21, 2026.

Phillip Morton

[Printed Name]

/s/ Phillip Morton

[Signature]

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Matthew Brigham [print or type full name], state: My
business address is 3175 Hanover St., Palo Alto, CA 94304;

My present employers are Cooley LLP;

My present occupations or job descriptions are Counsel for Respondents;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all **HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION** provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 21, 2026.

Matthew Brigham

[Printed Name]

/s/ Matthew Brigham

[Signature]

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Samuel Whitt [print or type full name], state: My

business address is 1299 Pennsylvania Ave. NW, Suite 700, Washington, DC 20004 ;

My present employers are Cooley LLP ;

My present occupations or job descriptions are Counsel for Respondents ;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 21, 2026.

Samuel Whitt

[Printed Name]

/s/ Samuel Whitt

[Signature]

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Patrick Lauppe [print or type full name], state: My

business address is 1299 Pennsylvania Ave. NW, Suite 700, Washington, DC 20004 ;

My present employers are Cooley LLP ;

My present occupations or job descriptions are Counsel for Respondents ;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 21, 2026.

Patrick Lauppe

[Printed Name]

/s/ Patrick Lauppe

[Signature]

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**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
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I, Matthew Ritter [print or type full name], state: My

business address is 1299 Pennsylvania Ave. NW, Suite 700, Washington, DC 20004;

My present employers are Cooley LLP;

My present occupations or job descriptions are Counsel for Respondents;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 21, 2026.

Matthew Ritter

[Printed Name]

/s/ Matthew Ritter

[Signature]

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**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, David Yun [print or type full name], state: My

business address is 1299 Pennsylvania Ave. NW, Suite 700, Washington, DC 20004 ;

My present employers are Cooley LLP ;

My present occupations or job descriptions are Counsel for Respondents ;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 21, 2026.

David Yun

[Printed Name]

/s/ David Yun

[Signature]

CERTIFICATE OF SERVICE

I hereby certify that on July 21, 2026, copies of the foregoing were filed with and served upon the following as indicated:

The Honorable Lisa Barton
Secretary to the Commission
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 112
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☐ Via Box
☐ Via Electronic Mail

The Honorable Clark S. Cheney
Chief Administrative Law Judge
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 317
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☒ Via Box
☒ Via Electronic Mail

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/s/ Nicholas Fox

Nicholas Fox
COOLEY LLP